GLI330 · Guest lecture 1 of 2

Dublin III: Who Is Responsible for a Refugee?

The politics behind Europe's asylum responsibility system

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About me

Who I am

Teaching

Politics of the EU

I teach POL309, Politics of the European Union for the Department of Political Science.

Research

Political psychology

Interests include identity, partisanship, and how people react to status threat, including attitudes toward migrants.

These two classes

Europe and the US as test cases

How states share, shift, and refuse responsibility for people seeking protection.

Scan to see my website

This week

Where today fits in the week

Course	When	Focus	What it adds
POL309	Week 10 · Oct 26, 28	The migration crisis, part I	Schengen, the asylum system, Dublin's basic rule, 2015, relocation, EU–Turkey
POL310	Tue Oct 27	Europe: who stays, and on what terms	Integration models, citizenship, civic tests, the radical right, the psychology of hostility
POL310	Thu Oct 29	The United States	Institutions, enforcement, public opinion, partisanship, and independents
GLI330	**Session 1**	**Dublin III up close**	**The hierarchy of criteria, procedures, courts, cooperation as an IR problem**
GLI330	Session 2	After Dublin	Ukraine, the 2024 Pact, externalization, instrumentalization, ethics
POL309	Week 11 · Nov 2–6	The psychology of compassion	Alan Kurdi, the empathy debate

POL309 = Politics of the European Union · POL310 = Politics of Immigration and Refugees · GLI330 = Globalization and IR: Human Mobility

Today's plan

1. Responsibility in the global refugee regime
2. Inside Dublin III: the hierarchy of criteria
3. Dublin in motion: requests, deadlines, transfers
4. Simulation: the Dublin desk
5. Courts and the limits of mutual trust
6. Dublin as an IR problem: why cooperation fails

A case to start

Amira’s case

Amira, a Syrian woman, crosses from Turkey to a Greek island and is fingerprinted. Her sister is a recognized refugee in Germany. Amira travels to Germany and asks for asylum there.

Vote now, and remember your answer

Which state must decide her claim?

A Greece

B Germany

C Wherever she chooses

A fictional case written for teaching. We return to it in the simulation.

1

Responsibility in the global refugee regime

What international law does not decide

The 1951 Convention set a duty but assigned it to no one

It defines

Who is a refugee

One with a well-founded fear of persecution on five possible grounds, outside one's own country.

It forbids

Refoulement

No return to a place where the person would face persecution.

It does not say

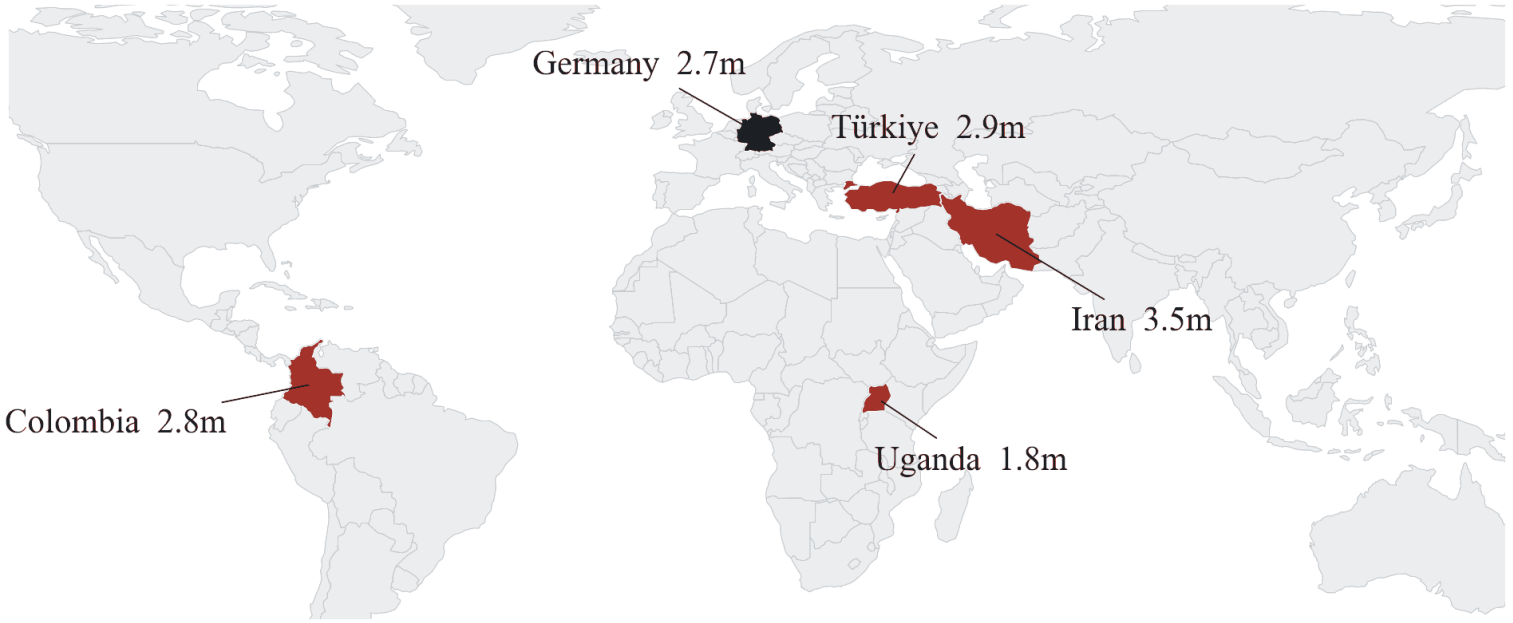
Which state is responsible

No allocation rule, and no binding duty to share the burden among states.

Dublin became Europe's attempt to assign responsibility.

Convention Relating to the Status of Refugees (1951), Arts. 1A(2) and 33, and 1967 Protocol; Hathaway and Neve, Harvard Human Rights Journal 10, 1997; Betts, Protection by Persuasion (2009)

Two in three refugees live in a country next to their own



Map of host countries with largest refugee populations

2 in 3

refugees live in a country neighboring their own.

Germany is the only EU member among the five largest hosts.

UNHCR, Global Trends: Forced Displacement in 2024 (June 2025) · refugees and people in refugee-like situations under UNHCR's mandate, millions, rounded

Dublin III chose connection first, geography by default, and rejected applicant choice

Geography

First country of entry

Whoever controls the border carries the claim. Simple, but it loads responsibility on the periphery.

Connection

Family, visas, residence

Responsibility follows existing links. Humane, but narrow definitions limit it.



Choice

The applicant decides

Matches where people will settle. States fear “asylum shopping.”

Distribution

Quotas

Shares by population and GDP. Fair on paper; people move on in practice.

European Commission, COM(2016) 270 (“Dublin IV”); European Parliament, LIBE report on the Dublin recast (2017); Thielemann, Journal of Common Market Studies 56(1), 2018

Dublin III is now history, but its logic was inherited and survives almost intact in its replacement

1990
Dublin Convention signed (in force 1997)

2003
Dublin II becomes an EU regulation

2013
Dublin III adopted; applies from 2014

2016
“Dublin IV” recast proposed, then stalls

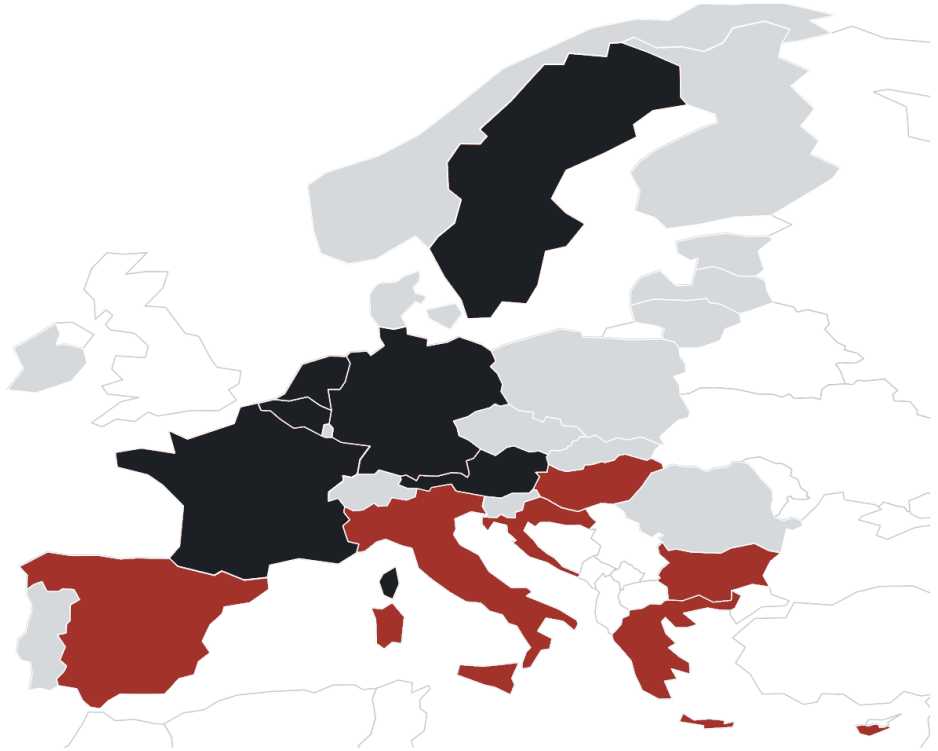
2024
Pact adopted; a new regulation replaces Dublin

2026
The new rules apply from June 12

The 2024 Asylum and Migration Management Regulation (AMMR) replaced Dublin III and has applied since June 2026. That is next class.

Dublin Convention (1990); Regulation (EC) No 343/2003 (Dublin II); Regulation (EU) No 604/2013 (Dublin III); COM(2016) 270; Regulation (EU) 2024/1351 (Asylum and Migration Management Regulation)

A rule based on entry location assigns responsibility to the states people most often want to leave



- Main external entry points, by sea and land
- Main destination states, 2015–2024
- Other Dublin states (EU + NO, IS, CH, LI)

South and east

People enter at the external border, mostly by sea and land.

North and west

Most want to settle where families, jobs, and better recognition rates are.

The mismatch

Responsibility lands where people are least likely to stay.

Regulation (EU) No 604/2013 (Dublin III); Eurostat asylum statistics, 2015–2024 · classification simplified for teaching

2

Inside Dublin III

The hierarchy of criteria, Articles 7 to 17

Apply the criteria in order; the first that fits decides

1 — Art. 8
Unaccompanied minor
Where a family member or relative is legally present

2 — Art. 9
Family member is a refugee
The state where they have protection

3 — Art. 10
Family member is an applicant
The state examining their claim

4 — Art. 11
Family applying together
One state for the whole family

5 — Art. 12
Residence document or visa
The state that issued it

6 — Art. 13
Irregular entry
The state of first irregular entry, for 12 months

7 — Art. 14
Visa-free entry
The state where the visa was waived

8 — Art. 15
Airport transit zone
The state of that airport

Dark cells: family criteria. If nothing fits, Art. 3(2) makes the first state where the claim was lodged responsible. Articles 16 and 17 can override the ladder. Article 17 lets any state selectively take responsibility for a case.

Regulation (EU) No 604/2013 (Dublin III), Articles 3(2), 7–17

The family criteria are humane in principle and narrow in practice

Counts as family, Art. 2(g)

The nuclear family

- Spouse, or unmarried partner in a stable relationship
- Minor, unmarried children
- Parents of a minor applicant
- Only if the family existed before arrival

Does not count, for adults

Everyone else

- Adult brothers and sisters
- Aunts, uncles, cousins, grandparents
- Relatives count only for unaccompanied minors or dependency (Arts. 8, 16)
- Families formed in transit or in Europe

Regulation (EU) No 604/2013 (Dublin III), Articles 2(g)–(h), 8–11, 16

Article 13 decides most cases

14

minimum age for Eurodac fingerprints under Dublin III (down to 6 under the 2024 rules)

12 months

after irregular entry, the first-entry state's responsibility lapses (Art. 13(1))

5 months

of continuous living in another state shifts responsibility there (Art. 13(2))

A fingerprint at the border fixes responsibility, until a year passes or the person has lived five months somewhere else.

Regulation (EU) No 603/2013 (Eurodac), Art. 9; Regulation (EU) 2024/1358 (Eurodac recast); Regulation (EU) No 604/2013 (Dublin III), Art. 13

The flexibility in Dublin belongs to states. Applicants have no right to choose

Art. 17(1) · Sovereignty

Any state may take any case

Germany used it for Syrians in August 2015, effectively suspending Dublin returns.

Art. 17(2) · Humanitarian

Uniting wider family

A state may ask another state to take responsibility on family or cultural grounds.

Art. 16 · Dependency

Care relationships

Keeps together a dependent person and a child, sibling, or parent who cares for them.

Regulation (EU) No 604/2013 (Dublin III), Articles 16–17; BAMF guidance on Syrian applicants, August 21, 2015

3

Dublin in motion

Requests and transfers that rarely happen

From fingerprint to transfer

Claim lodged

In the state where the person is

Eurodac check

Shows any prior entry or claim

Request

Within 3 months; 2 after a Eurodac hit

Reply

Within 2 months; silence means yes

Transfer

Within 6 months, or responsibility shifts

Take charge · Arts. 21–22

First claim elsewhere

The person has not applied in the other state, but a criterion points to responsibility there.

Take back · Arts. 23–25

Claim already lodged

The person applied in another state, then moved on.

Regulation (EU) No 604/2013 (Dublin III), Articles 21–25, 29

Many requests, few transfers

~1 in 10

In recent years only around one in ten Dublin requests, and at most about one in five, ended in a transfer.

The system generated enormous administrative effort and moved few people.

EUAA, Asylum Report (annual editions, Dublin chapter); European Commission, Evaluation of the Dublin III Regulation (2016); ECRE, AIDA Dublin statistics

Every actor in the system has a reason to let the clock run out

Applicants

Absconding

People avoid transfer by moving on or going underground.

Courts

Suspensions

Transfers halted to states with systemic flaws, as with Greece from 2011.

States

Foot-dragging

Receiving states have every reason to slow down; deadlines then expire.

Cost

Low return

Escorted transfers are costly, and many people simply travel back.

Each of these is rational for someone.

European Commission, Evaluation of the Dublin III Regulation (2016); M.S.S. v. Belgium and Greece, ECtHR [GC], no. 30696/09 (2011); N.S. and M.E., C-411/10 and C-493/10 (CJEU, 2011); ECRE, AIDA country reports

4

Simulation: the Dublin desk

You are now the Dublin unit of Germany's asylum office

Instructions · 12 minutes

You are now making the responsibility decisions

1 Read the file

Four applicants have lodged claims in Germany.

2 Apply the ladder

Go through Articles 8–15 in order. The first criterion that fits decides.

3 Decide on discretion

Would Germany use Article 17? Why, or why not?

4 Report

Responsible state, the article you used, and your reasoning.

Groups of three or four. Every group decides all four cases; each reports one.

Cases A and B: Yonas and Amira

Case A · Yonas, 16, Eritrea

Unaccompanied minor

Arrived in Italy by sea and was fingerprinted there. His uncle lives legally in Sweden and can care for him. Yonas has applied for asylum in Germany.

Case B · Amira, 34, Syria

Adult with a sister in Germany

Crossed irregularly into Greece eight months ago and was fingerprinted. Her adult sister is a recognized refugee in Germany. Amira has applied in Germany.

Cases C and D: Daniel and Karim

Case C · Daniel, 29, Colombia

Visa-free arrival

Flew to Madrid without a visa, as Colombians legally may. Four months later he took a train to France and applied for asylum there. France has asked Germany for advice on the Dublin rules.

Case D · Karim, 24, Afghanistan

A long journey

Crossed irregularly into Bulgaria 14 months ago and was fingerprinted. He then lived in Austria for seven months without registering. He has now applied in Austria; Austria asks Germany for a second opinion.

Answer key

What the regulation says

Case	Responsible	Article	The lesson
Yonas	Sweden	Art. 8(2)	For minors, a relative outranks the fingerprint
Amira	Greece on paper; Germany in practice	Arts. 13(1), 3(2), 17	Adult siblings are not “family”; systemic flaws block transfer
Daniel	France	Art. 14(2)	Visa-free entry follows the state where the claim is lodged
Karim	Austria	Art. 13(2)	Time and residence move responsibility

Regulation (EU) No 604/2013 (Dublin III); on systemic flaws in Greece: M.S.S. v. Belgium and Greece (ECtHR, 2011) and N.S. (CJEU, 2011)

Debrief

What the simulation reveals

Question 1

Which outcome surprised you?

Where did your intuition and the rule part ways?

Question 2

Whose interests does the ladder serve?

Frontline states, destination states, or applicants?

Question 3

Whose voice is missing?

Where in Articles 8–15 does the applicant's preference appear?

Discretion and credibility tests turn the same rule into different outcomes

Ramji-Nogales et al. (2007)

Refugee roulette

5% vs 88%

Grant rates for Colombian applicants before two judges in the same Miami court. With a lawyer, applicants won about three times as often.

Herlihy, Scragg and Turner (2002)

Trauma and memory

27

refugees interviewed twice about the same events. Discrepancies were common, mostly in peripheral details, and grew with time among those with high PTSD symptoms.

Dublin III in practice

Discretion in Dublin

Art. 22(5)

Without proof, the account of the route must be “coherent, verifiable, and sufficiently detailed.” Art. 17 lets officials take any case.

Ramji-Nogales, Schoenholtz and Schrag, Stanford Law Review 60(2), 2007; Herlihy, Scragg and Turner, BMJ 324(7333), 2002; UNHCR, Beyond Proof: Credibility Assessment in EU Asylum Systems (2013); Bansak, Hainmueller and Hangartner, Science 354(6309), 2016; Regulation (EU) No 604/2013 (Dublin III), Arts. 17, 22(5)

5

Courts and the limits of mutual trust

Case law after M.S.S.

Courts turned a rule between states into rights for individuals

2014

Tarakhel (ECtHR): families to Italy only with individual guarantees

2016

Ghezelbash (CJEU): applicants may challenge how the criteria were applied

2017

C.K. (CJEU): no transfer of a seriously ill person at real risk

2017

Jafari; A.S. (CJEU): 2015 “waving through” still counts as irregular entry

2019

Jawo (CJEU): risk after recognition counts too

Tarakhel v. Switzerland, ECtHR [GC], no. 29217/12 (2014); Ghezelbash, C-63/15 (2016); C.K. and Others, C-578/16 PPU (2017); Jafari, C-646/16, and A.S., C-490/16 (2017); Jawo, C-163/17 (2019)

Jafari and A.S.: Dublin law holds while practice collapses

Advocate General Sharpston

Exceptional times

- States organized and permitted the crossings, with buses north
- Calling that “irregular” ignores what happened
- Dublin was not designed for mass arrivals

The Court of Justice, July 2017

The rule still applies

- Being waved through is not a visa or authorization
- The first state of entry stays responsible: Croatia, in this case
- Burden-sharing is for the legislature, not the court

Jafari, C-646/16, and A.S., C-490/16 (CJEU [GC], 26 July 2017); Opinion of Advocate General Sharpston (8 June 2017)

6

Dublin as an international relations problem

Why cooperation on refugees is so hard

Refugee protection as a prisoner's dilemma

		State B: Shares	State B: Shifts
State A	Shares	**3 , 3** Both share: fair and stable	**1 , 4** A hosts; B free-rides
State A	Shifts	**4 , 1** A free-rides; B hosts	**2 , 2** Both shift: a deterrence race

Shifting responsibility is better for A whatever B does: a strictly dominant strategy. The same holds for B.

So (Shift, Shift) is the only Nash equilibrium, even though both states prefer (Share, Share).

In a repeated game, conditional cooperation becomes possible, if someone monitors and enforces.

Suhrke, Journal of Refugee Studies 11(4), 1998; Axelrod, The Evolution of Cooperation (1984); Betts, Protection by Persuasion (2009) · ordinal payoffs for illustration, listed as (A, B)

Venue shopping: why governments wanted Dublin even as it was breaking



Each move escapes a domestic constraint: national courts, parliaments, NGOs.

Guiraudon, Journal of Common Market Studies 38(2), 2000; Guiraudon and Lahav, Comparative Political Studies 33(2), 2000; Lavenex, West European Politics 29(2), 2006; Putnam, International Organization 42(3), 1988

Graded as an institution, Dublin had monitoring and little else

Design feature	What it does	Dublin III
Monitoring	Lets states verify compliance	Strong: Eurodac fingerprints prove entry
Side payments	Compensates those who carry costs	Weak: EU funds small relative to the burden
Issue linkage	Ties cooperation to other gains	Absent: no trade-off offered to frontline states
Enforcement	Punishes defection	Weak: infringement cases slow and rare
Flexibility	Absorbs shocks	Only for states (Art. 17), never as burden-sharing

Koremenos, Lipson and Snidal, International Organization 55(4), 2001; Thielemann, Journal of Common Market Studies 56(1), 2018

What to take from today

1

A rule that fights where people go

Dublin allocated responsibility by connection, then geography, and never by applicant choice, so it works against the routes and destinations people actually take.

2

Courts made it a rights regime

Systemic flaws, individual guarantees, and judicial review turned a rule between states into rights for applicants.

3

A cooperation problem, institutionalized

Strong monitoring, weak side payments, and enforcement: a prisoner’s dilemma written into law but not solved by it.

GLI330 · Guest lecture 2 of 2

After Dublin: Refugee Politics and the Fortress Europe Built

Ukraine, the 2024 Pact, externalization, and what states owe refugees

Diego Hernandez, Ph.D. Candidate
Department of Political Science, Stony Brook University
Thursday, October 29, 2026

Last class

Where we left Dublin

The rule

Family connection, then geography

Family and visas first, irregular entry by default, applicant choice never.

The courts

From rule to rights

Systemic flaws, individual guarantees, and judicial review constrain transfers.

The game

A prisoner's dilemma

Strong monitoring, weak side payments, weak enforcement: states are pushed to shift rather than share.

Today's question: did Europe solve the dilemma, or move it somewhere else?

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POL310	Tue Oct 27	Europe: who stays, and on what terms	Integration models, citizenship, civic tests, the radical right, the psychology of hostility
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GLI330	Session 1	Dublin III up close	The hierarchy of criteria, procedures, courts, cooperation as an IR problem
GLI330 · today	**Session 2**	**After Dublin**	**Ukraine, the 2024 Pact, externalization, instrumentalization, ethics**
POL309	Week 11 · Nov 2–6	The psychology of compassion	Alan Kurdi, the empathy debate

POL309 = Politics of the European Union · POL310 = Politics of Immigration and Refugees · GLI330 = Globalization and IR: Human Mobility

Today’s plan

1. Europe in the global refugee picture
2. Ukraine: the exception that tests the rule
3. The 2024 Pact on Migration and Asylum, now in force
4. Externalization: moving the border abroad
5. Instrumentalization and the right to asylum
6. What do states owe refugees? A Council simulation

1

Europe in the global picture

Scale, trends, and who enters

Seen from Europe, a crisis at the border. Seen globally, Europe hosts a minority

123m

people forcibly displaced worldwide, most of them inside their own country

~2 in 3

refugees are hosted in a country neighboring their own

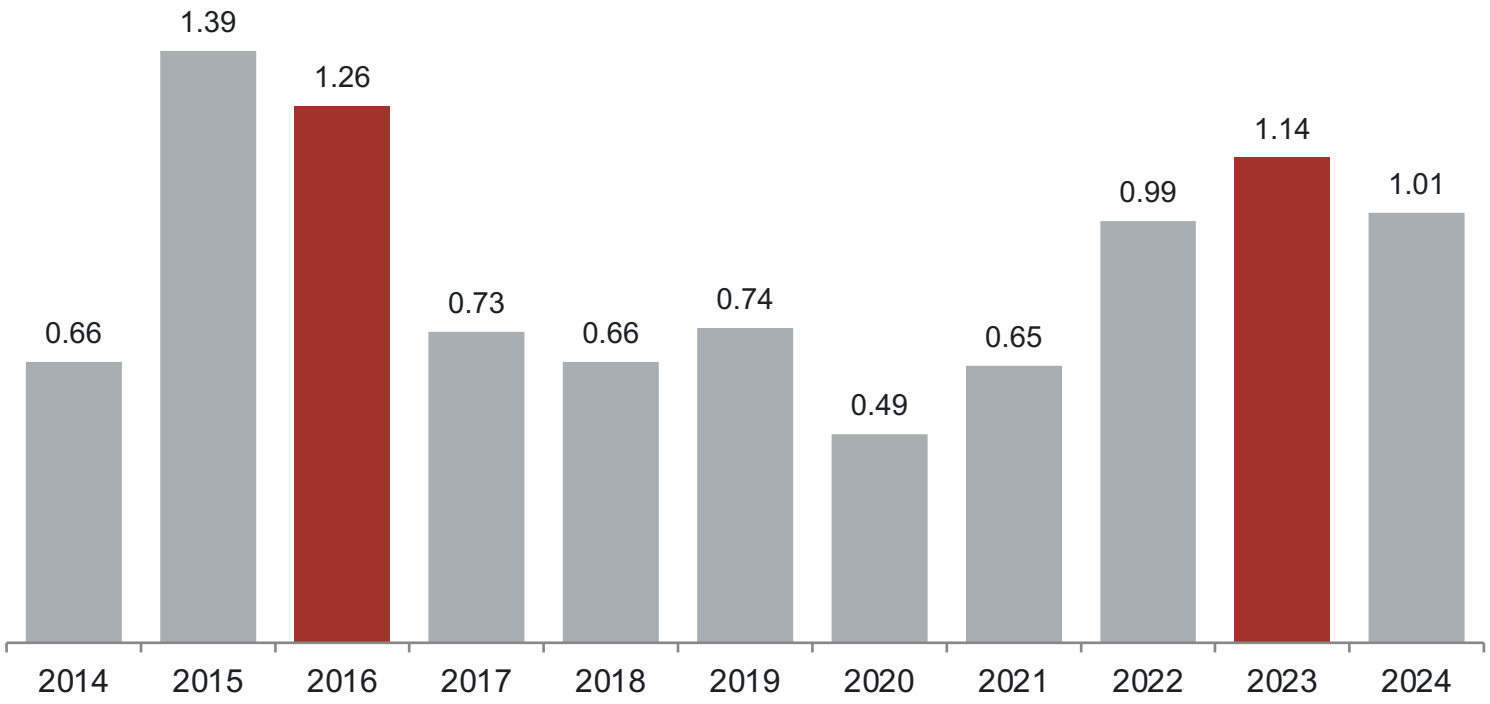
4th

Germany's rank among the world's refugee-hosting states, the only EU member in the top five

UNHCR, Global Trends: Forced Displacement in 2024 (June 2025) · end-2024 figures, rounded

EU+ asylum applications in 2023 came close to the 2016 level

Asylum applications in the EU+, millions



1.14m

applications in 2023, near the 1.26m of 2016

Not shown: about 4.3 million people from Ukraine under temporary protection, who did not need to apply for asylum.

EUAA, Asylum Report 2025 and Latest Asylum Trends · EU+ = EU plus Norway and Switzerland · applications in millions, rounded

Visa policy is migration policy: many asylum seekers now arrive by plane

1	**Syria**	Still the largest group, though falling after the fall of Assad in December 2024
2	**Afghanistan**	Very high recognition rates
3	**Venezuela**	Mostly visa-free arrivals in Spain
4	**Türkiye**	Concentrated in Germany
5	**Colombia**	Visa-free; recall Case C from Session 1

EUAA, Asylum Report 2025 (data for 2024); Council Regulation (EU) 2018/1806, Annex II (visa-free nationalities)

2

Ukraine: the exception that tests the rule

Temporary protection and free choice

The same legal tool existed since 2001. What changed in 2022 was political will

2001	2011	2015	Mar 2022	2025
Directive adopted after the Kosovo crisis	Not activated for Libya	Not activated for Syria	Activated unanimously, eight days after Russia’s full-scale invasion	Extended to March 2027

Same directive, same legal tool. The difference was whether governments wanted to use it.

Council Directive 2001/55/EC; Council Implementing Decision (EU) 2022/382 (March 4, 2022); Council decision extending temporary protection to March 4, 2027 (2025); Ineli-Ciger, Temporary Protection in Law and Practice (2018)

2015 versus 2022

	2015 · Syria and beyond	2022 · Ukraine
Legal status	Individual asylum procedure, taking months or years	Immediate group protection
Allocation	Dublin first-entry rule, then contested quotas	Free choice of country
Rights on arrival	Work and services delayed	Residence, work, schooling, health from day one
Solidarity	Quotas imposed by majority vote, then resisted	Central European states offered to host
Public framing	Threat and a need for control	Neighbors fleeing a common enemy

Council Implementing Decision (EU) 2022/382; Council Decision (EU) 2015/1601 (relocation); Eurostat, temporary protection statistics (migr_asytpsm)

Generosity was real, and it was selective

Geopolitics

A common enemy

Hosting Ukrainians was also a stance against Russia.

Identity

“People like us”

Perceived similarity, sometimes voiced in openly racialized terms.

Demography

Women and children

Men of fighting age were barred from leaving Ukraine.

Critique

Unequal protection

Non-Ukrainians fleeing the same war often received less.

De Coninck, International Migration Review 57(2), 2023; Moise, Dennison and Kriesi, West European Politics 47(2), 2024; UN human rights experts, statement on discrimination at Ukraine’s borders (3 March 2022)

Ukraine versus 2015: a natural experiment?

What differed	Arrivals in 2015	Arrivals in 2022
Religion	Mostly Muslim-majority origins	Mostly Christian
Who arrived	Many young men, traveling ahead of families	Women, children, older people; men 18–60 barred from leaving
Legal route	Irregular sea and land crossings	Visa-free travel, in place since 2017
Source of threat	Arrivals framed as a security risk	Russia framed as the common enemy
Proximity	Distant origins, long transit	A neighbor; existing diaspora networks

Natural experiment checklist

✗ As-if random assignment

✗ Only one thing differs

✓ Same states, publics, and institutions

A paired comparison. Similarity and threat are tangled up with everything else. To isolate "people like us," you have to randomize.

Dunning, Natural Experiments in the Social Sciences (2012); Council Implementing Decision (EU) 2022/382; Regulation (EU) 2017/850 (visa-free travel for Ukrainians)

A conjoint experiment randomizes the traits that came bundled in 2022

18,000
eligible voters

15
European countries

180,000
randomized profiles

Each trait is assigned at random, so nationality, religion, skills, and credibility no longer travel together. Each one's effect can be measured on its own.

Profile A

- Origin: Ukraine
- Religion: Muslim
- Previous job: teacher
- Testimony: minor inconsistencies
- Reason: political persecution

Profile B

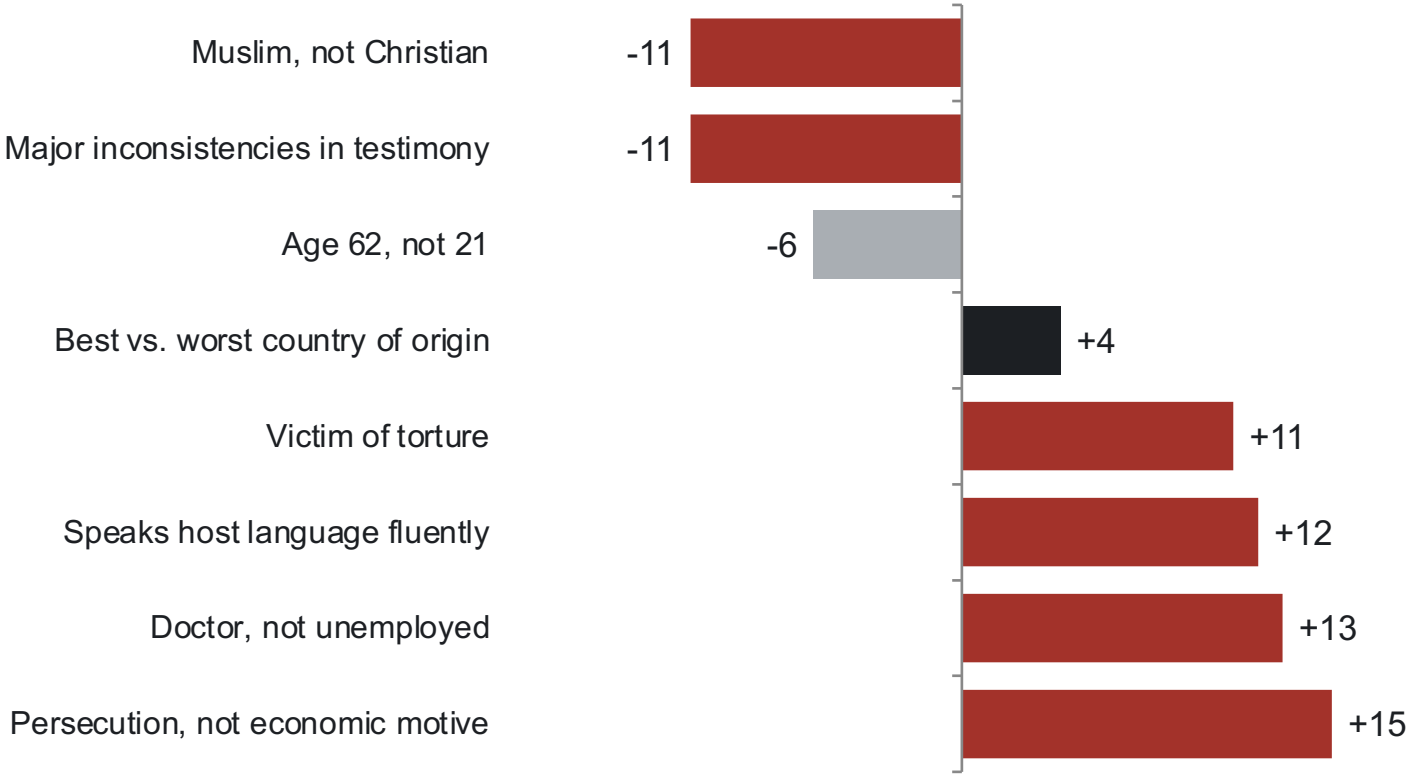
- Origin: Syria
- Religion: Christian
- Previous job: unemployed
- Testimony: no inconsistencies
- Reason: economic opportunity

Which of the two would you accept?

Bansak, Hainmueller and Hangartner, Science 354(6309), 2016; Hainmueller, Hopkins and Yamamoto, Political Analysis 22(1), 2014 · example profiles illustrative; nine attributes were randomized in the study

Nationality barely mattered. The bundle did

Effect on probability of acceptance, percentage points



Origin country: at most 4 points

Ukrainian and Syrian applicants were already the most accepted, by a small margin.

The bundle: 11 to 15 points each

Religion, vulnerability, skills, and credibility all favored 2022 arrivals.

What it could not test

A shared enemy as the source of threat was never varied.

Bansak, Hainmueller and Hangartner, Science 354(6309), 2016 · average marginal component effects in percentage points, rounded; language effect is fluent vs. none

Ukraine was the largest test ever of letting protected people choose

What worked

Applicant choice removed most of the problems

- People went where networks and jobs were
- No Dublin transfers, no absconding, no cat-and-mouse
- Hosting followed willingness and capacity

What it cost

Uneven burdens and unequal rights

- Poland, Czechia, and Germany carried the largest shares
- No formal compensation mechanism
- A two-tier system: Ukrainians versus everyone else

Eurostat, temporary protection statistics (migr_asytpsm); Council Implementing Decision (EU) 2022/382, Art. 5; OECD, International Migration Outlook 2023

Other hosts, other models

Colombia

1.96m

Ten-year protection permits

Issued to Venezuelans since 2021. A group status like Ukraine’s, with access to work and services.

Uganda

2.0m

Open-door settlements

Refugees may work and farm land. By March 2026, UNHCR had received only 14% of its funding needs for Uganda.

Bangladesh

1.2m

Rohingya live in camps

They are officially barred from working.

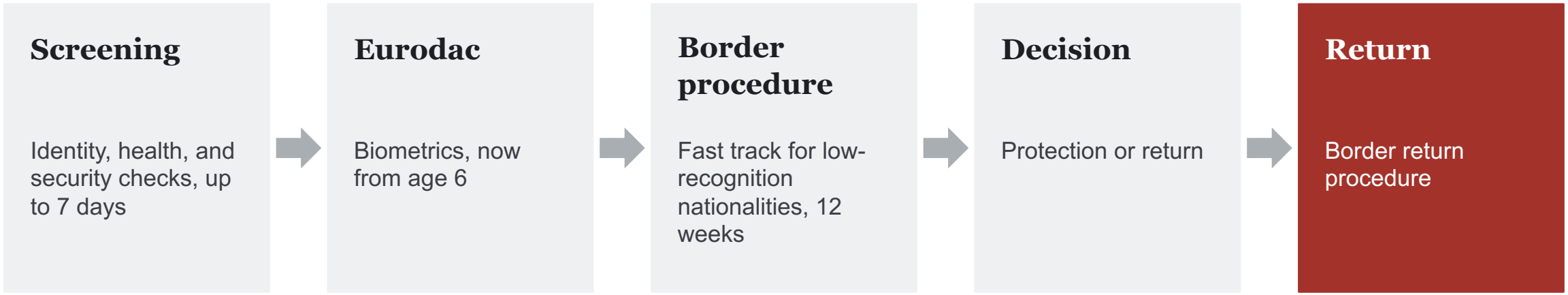
Migración Colombia via ECOI (2026); UNHCR Uganda fact sheet, Jan–Mar 2026; UNHCR and Reuters (June 2026); Rohingya Joint Response Plan 2026; Betts, Bloom, Kaplan and Omata, Refugee Economies (2017)

3

The Pact on Migration and Asylum

Adopted in 2024, in force since June 2026

Ten laws, and one border process for irregular arrivals



The border procedure targets nationalities with EU-wide recognition rates below 20%.

Plus, a new responsibility regulation replacing Dublin III, a crisis and force majeure regulation, and new rules on qualification, reception, and resettlement.

Regulations (EU) 2024/1346–1359; Regulation (EU) 2024/1356 (Screening); Regulation (EU) 2024/1348 (Asylum Procedure), Arts. 42–54; Council of the EU, adoption of May 2024

Dublin’s successor keeps the ladder and adds a solidarity mechanism

	Dublin III (2013)	AMMR (2024, applied 2026)
Hierarchy of criteria	Family, documents, entry	Largely the same, plus diplomas
Irregular entry	Responsible for 12 months	Responsible for 20 months (12 after sea rescue)
Absconding	Transfer deadline extended	Responsibility stays, and reception rights can be cut
Deadlines	Requests within 3 months	Shorter: requests within 2 months
Solidarity	**None built in**	**Annual Solidarity Pool**

Regulation (EU) 2024/1351 (Asylum and Migration Management Regulation) · simplified

The Solidarity Pool: choice for states, not for people

Option 1

Relocate people

Take in asylum seekers from a state under pressure.

Option 2

Pay €20,000 per person

Financial contributions instead of relocation.

Option 3

Provide operational support

Staff, equipment, or capacity-building, including in third countries.

The baseline Each year, EU-wide: at least 30,000 relocations and €600 million.

Regulation (EU) 2024/1351 (Asylum and Migration Management Regulation), solidarity provisions

€20,000 and the taboo trade-off

Routine

Secular for secular

Money for time or convenience. No moral outrage.

Taboo

Sacred for secular

Money for a life, a child, a homeland. Outrage at the very calculation.

Tragic

Sacred for sacred

Life against life. Painful, but not shameful.

Why it works institutionally

Payment protects the refusal

No state is paid to accept people, which Ginges et al. find would backfire. Instead a state may pay to keep its refusal, so the Pact avoids the backlash.

Why it troubles critics

Protection gets a price

- €20,000 per person puts a market value on refuge
- “Solidarity contribution” reframes a price as a virtue
- Frontline states get cash, not shared hosting

Tetlock, Trends in Cognitive Sciences 7(7), 2003; Tetlock, Kristel, Elson, Green and Lerner, Journal of Personality and Social Psychology 78(5), 2000; Ginges, Atran, Medin and Shikaki, PNAS 104(18), 2007; Regulation (EU) 2024/1351 (Asylum and Migration Management Regulation)

The Pact compensates the dilemma rather than solving it

Frontline states

Italy, Greece, Spain, Cyprus

Get solidarity contributions. Keep responsibility and must run the border procedure.

Destination states

Germany, Netherlands, Sweden

Get longer, stickier responsibility for entry states and faster border screening.

Opponents

Hungary, Poland

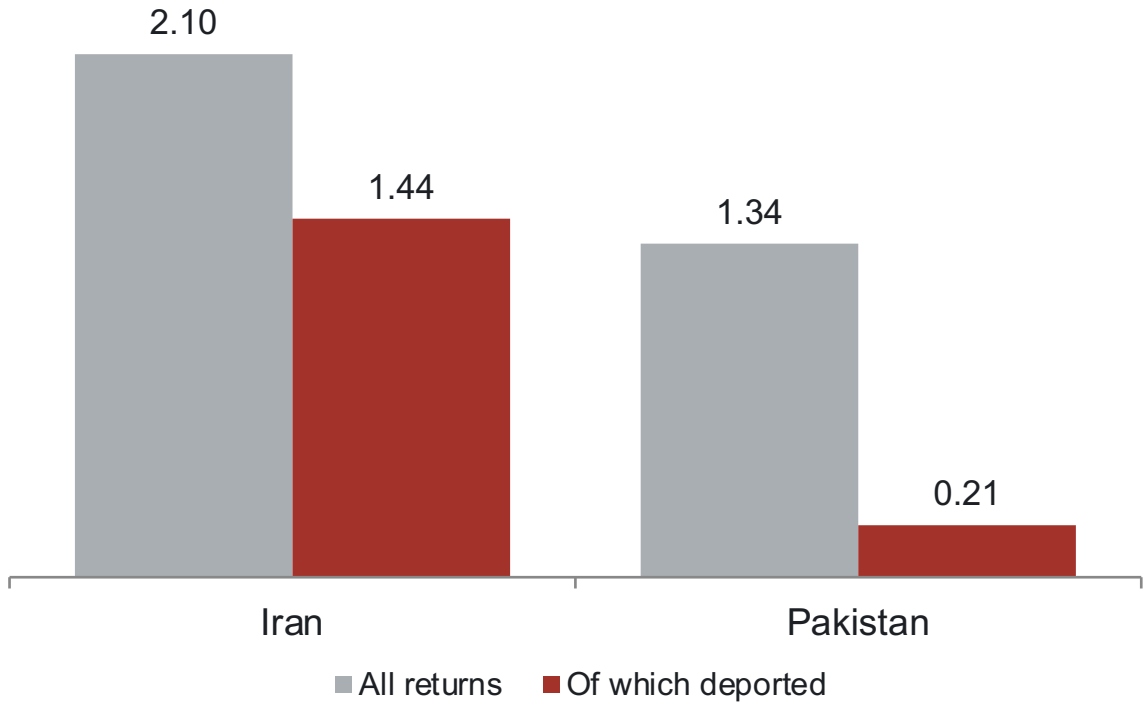
Never have to accept a person; can pay instead. Still voted against and resist implementation.

Side payments, not shared hosting.

Council of the EU, votes of May 2024; Session 1 on institutional design (Koremenos, Lipson, and Snidal, 2001)

Iran, Afghanistan, and Pakistan: 3.4 million returns in 16 months

Afghan returns, Jan 2025–Apr 2026, millions



Iran set a July 2025 deadline for undocumented Afghans. Pakistan announced an expanded repatriation drive on July 31, 2025.

UN agencies note that “return” is not the same as voluntary: arrests, detention, and deadlines drive many departures.

Shifting is the dominant strategy for any host when sharing is unfunded, in Tehran as in Rome.

IFRC (June 2026), using IOM and UNHCR border monitoring, Jan 2025–Apr 2026; UNHCR, Iran–Afghanistan Returns Emergency Response (Dec 2025)

4

Externalization

Moving the border beyond Europe

The legal duty begins at the border, so states move the border

1

Domes

Control the sky

Visas and carrier sanctions stop people boarding.

2

Buffers

Transit states

Neighbors paid to stop people before they reach the EU.

3

Moats

The sea

Interceptions and pullbacks before territorial waters.

4

Barbicans

Offshore processing

Screening and detention outside the territory.

5

Cages

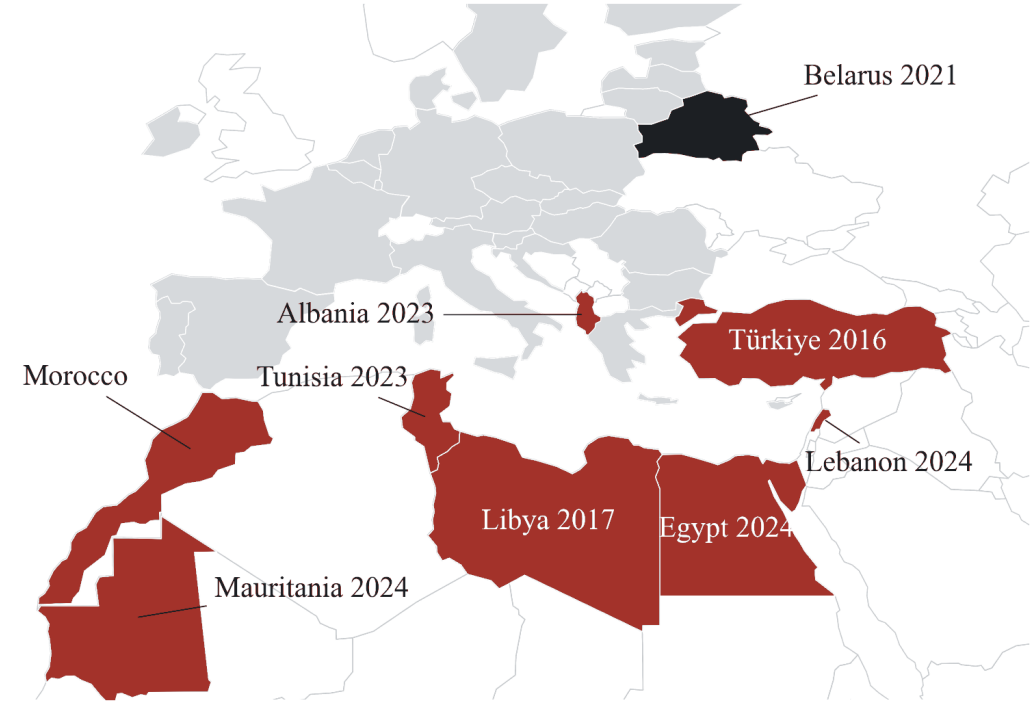
Detention

Holding people at the edge until return.

FitzGerald's "architecture of repulsion"

FitzGerald, Refuge beyond Reach: How Rich Democracies Repel Asylum Seekers (2019); Gammeltoft-Hansen, Access to Asylum (2011)

Europe’s migration-control partners



Leverage runs both ways

Partners extract money, trade access, and political cover. Tsourapas calls this the “refugee rentier state.”

Deals with Tunisia (2023), Egypt (2024), and Mauritania (2024) followed the 2016 EU–Turkey template.

European Commission, EU–Tunisia MoU (July 2023), EU–Egypt (March 2024) and EU–Mauritania (March 2024) partnerships; EU–Turkey Statement (18 March 2016); Tsourapas, Journal of Global Security Studies 4(4), 2019 · deal years approximate

Externalization goes global

Sender	Receivers	What they get
Australia, 2001 onward	Nauru, Papua New Guinea	Hosting fees and facilities
EU, 2016 onward	Türkiye, Libya, Tunisia, Egypt, Mauritania, Albania	Money, trade access, political cover
United States, 2025 onward	Eswatini, South Sudan, Rwanda, Uganda, Ghana, Liberia, Honduras, Guatemala, Paraguay, and others	Terms often undisclosed; some receivers reportedly paid

Tsourapas, Journal of Global Security Studies 4(4), 2019; Mixed Migration Centre (2025); AP (Aug 2026); CBS News; Human Rights Research Center (Apr 2026)

Australia: the offshoring template for EU policy

2001 — “Pacific Solution”: people intercepted at sea sent to Nauru and Manus Island

2008 — The Rudd government dismantles the centers

2012 — Revived on Nauru and Papua New Guinea

2013 — No settlement in Australia for boat arrivals; military-led turnbacks follow

2023 — First new transfers to Nauru in nine years; capacity kept on standby

3,439

people sent offshore since July 2013, after 20,587 arrived by boat in 2013 alone.

~A$1bn

a year on average. With almost no one held, about A$350m a year still keeps the capacity ready.

Which part deters?

Arrivals fell after the July 2013 no-settlement rule, before the first turnback. Credit is contested.

Parliamentary Library of Australia (2015); Refugee Council of Australia, submission (2026); Library of Congress, Offshore Processing of Asylum Seekers; Guardian Australia (2023) · costs in Australian dollars

Italy–Albania: offshore processing collides with onshore courts

Nov 2023
Italy and Albania sign the protocol

Oct 2024
Centers open; first transfers by sea

Oct 2024
Italian courts refuse to validate detentions

2025
Centers repurposed toward returns

Aug 2025
CJEU: safe-country lists open to judicial review

Offshore processing still has to answer to onshore courts. Under the Pact, other governments are watching this model closely.

Italy–Albania Protocol (6 Nov 2023); Alace and Canpelli, joined cases C-758/24 and C-759/24 (CJEU [GC], August 1, 2025)

The human cost

30,000+

recorded dead or missing in the Mediterranean since 2014

Jun 2023

Pylos shipwreck off Greece: hundreds drowned

2023

UN mission on Libya: crimes against humanity against migrants

Many deaths at sea are never recorded. IOM's counts are a floor, not an estimate.

IOM, Missing Migrants Project (Mediterranean, 2014–2025); Independent Fact-Finding Mission on Libya, UN Doc. A/HRC/52/83 (March 2023); UN OHCHR statements on the Pylos shipwreck (June 2023)

Euphemism and moral disengagement

Policy term	Plain description	Bandura's mechanism
"Return hubs"	Centers in third countries for people ordered to leave the EU	Euphemistic labeling
"Pullbacks," "interceptions"	Partner coast guards stop boats and return people before EU waters	Displacement of responsibility
"Migration partnerships"	Payments to external states to keep people from leaving	Moral justification
"Safe third country"	A designation that removes the need to examine a claim	Disregard of consequences
"Instrumentalization"	Migrants described as a hostile state's weapon	Attribution of blame
"Saving lives by stopping departures"	Deterrence presented as rescue	Advantageous comparison

Bandura, Personality and Social Psychology Review 3(3), 1999; Bandura, Barbaranelli, Caprara and Pastorelli, Journal of Personality and Social Psychology 71(2), 1996 · terms from EU and member-state policy documents

Externalization spreads the responsibility and moves the harm out of sight

Who is responsible?

EU	Funds and trains
Member state	Signs the deal
Partner coast guard	Intercepts at sea
Detention center	Holds people

After Hirsi Jamaa v. Italy (2012) held Italy responsible for its own pushbacks, control moved to partners: "contactless control." Separately, we know that the more removed and out of sight cruelty is from us, the more we are willing to go along with it.

Milgram, Obedience to Authority (1974), Experiments 1–4; Bandura, PSPR 3(3), 1999; Hirsi Jamaa and Others v. Italy, ECtHR [GC], no. 27765/09 (2012); Moreno-Lax and Giuffré, in Juss, ed., Research Handbook on International Refugee Law (2019)

5

Instrumentalization

When migration becomes a weapon, and asylum a casualty

Belarus, 2021, and the response

2021
Belarus channels migrants to EU borders

2022
Poland completes a physical wall on the Belarus border

Nov 2023
Finland closes its border crossings with Russia

Dec 2024
Commission allows exceptional measures, including physical barriers, against "weaponization"

Mar 2025
Poland: law to suspend asylum applications at the border

> Greenhill: the openness of liberal states is the vulnerability that coercers exploit.

Greenhill, Weapons of Mass Migration (2010); European Commission, COM(2024) 570 (December 11, 2024); Polish act of 2025 amending the Act on granting protection to foreigners (in force March 2025)

Does weaponization justify suspending asylum?

Yes

Security and sovereignty

- A hostile state is using people as a weapon
- Accepting claims rewards the coercive state
- Temporary, geographically limited, and for exceptional situations

No

Rights cannot be suspended

- Individuals are punished for a regime's hostile strategy
- Non-refoulement admits no exceptions
- The CJEU (2022) held Lithuania could not bar asylum claims during a declared emergency
- In politics, temporary measures tend to become permanent

Who is the victim of weaponized migration: the state, or the migrant?

Greenhill (2010); ECHR Art. 3; M.A. v. Lithuania, C-72/22 PPU (CJEU, 30 June 2022); N.D. and N.T. v. Spain, ECtHR [GC], nos. 8675/15 and 8697/15 (2020); Regulation (EU) 2024/1359 (crisis and force majeure)

Return hubs, safe lists, and rethinking rights

March 2025

Return hubs

The proposed Return Regulation would allow returns to centers in third countries.

April 2025

An EU safe-country list

Bangladesh, Colombia, Egypt, India, Kosovo, Morocco, and Tunisia proposed. Five EU countries have pushed to add Rwanda and Uganda.

May 2025

Rethinking the ECHR

Nine governments, led by Italy and Denmark, sought a narrower reading of the Convention on migration.

European Commission, COM(2025) 101 (Return Regulation proposal, 11 March 2025) and COM(2025) 186 (EU safe countries of origin, 16 April 2025); joint letter of nine governments on the ECHR, 22 May 2025

Does “people like us” travel outside the West?

Pakistan

Similar, yet expelled

Many Afghans share faith and ethnicity with Pakistanis. Pakistan still expanded repatriation in 2025.

Colombia

Similar and protected

Shared language and region. A ten-year status for nearly two million Venezuelans.

Uganda

Open, but underfunded

Many refugees have kin across the border. The policy survives, but funding falls short.

Much of the experimental evidence in these sessions (Bansak et al., Kteily, Milgram) comes from Western samples. Do the mechanisms travel?

What variables might change outcomes between these cases?

Henrich, Heine, and Norenzayan, Behavioral and Brain Sciences 33(2–3), 2010; UNHCR and IFRC (2026); Migración Colombia via ECOI (2026)

6

What do states owe refugees?

Normative IR, then a Council simulation

The ethics of asylum

Cosmopolitan

Carens

Birthplace is morally arbitrary; closed borders resemble feudal privilege. States hold strong moral duties to admit.

Communitarian

Walzer, Miller

Communities may decide membership, but owe protection to those in danger, with some discretion over how.

Pragmatic

Betts and Collier

Protection near home, with jobs and development. The goal is refuge, not resettlement in Europe.

Externalization borrows the pragmatists' language.

Carens, The Ethics of Immigration (2013); Walzer, Spheres of Justice (1983); Miller, Strangers in Our Midst (2016); Gibney, The Ethics and Politics of Asylum (2004); Betts and Collier, Refuge (2017)

Simulation · 20 minutes

The Council negotiates the next Solidarity Pool

The proposal

Draft

30,000 relocations and €600 million for next year, plus EU funding for return hubs in partner states.

Timing

20 minutes

Ten minutes to caucus, eight to negotiate in plenary, two to vote.

To pass

5 of 8

Five of eight delegations, including at least two of Germany, Italy, Spain, and Poland.

Each delegation must state how many people it will relocate, how much it will pay, and its position on return hubs.

Real qualified majority: 15 of 27 states representing 65% of the EU population (TEU Art. 16(4))

Frontline and destination states

Italy

Frontline state, hard line

Wants maximum relocation away from Italy and EU money for return hubs. Will trade on Albania-style offshore models.

Greece

Frontline state, overstretched

Wants relocation, not money. Wary of becoming the EU's gatekeeper under the border procedure.

Germany

Main destination

Will pay and relocate some, but wants frontline states to register everyone and keep them.

Spain

Frontline state, pragmatic

Labor shortages; open to legal pathways. Prefers partnerships with Morocco and Mauritania.

Delegations may deviate if they can justify it with domestic politics.

Skeptics and swing states

Hungary

Rejectionist

Will not relocate anyone. Prefers to block; will pay only if offered concessions elsewhere.

Poland

Exemption seeker

Hosts many Ukrainians and argues that should count as solidarity. Suspended asylum at the Belarus border.

Netherlands

Restrictive swing state

Sought an opt-out from EU asylum rules. Will support return hubs; reluctant to relocate.

Sweden

Former champion

Once Europe's most generous host, now restrictive. Will pay rather than relocate.

Hungary and Poland voted against the Pact; Sweden and the Netherlands now have restrictive governments. The swing states may decide the vote.

What happened in the room?

Question 1

Did anyone relocate people?

Or did everyone pay? Map it onto Session 1's prisoner's dilemma.

Question 2

What was traded?

Did return hubs or exemptions buy votes? Issue linkage in action.

Question 3

Who was absent?

Where were refugees' own interests represented in the room?

What to take from these two sessions

1

Choice is the missing variable

Dublin denied applicants a choice and fought secondary movement; Ukraine allowed it, and the conflict largely disappeared.

2

Payments, not sharing

The Pact compensates frontline states instead of distributing people: it prices the dilemma rather than resolving it.

3

The border moves outward

Externalization and instrumentalization shift the cost of protection to partner states, the sea, and the courts.

Final reflection

Thirteen years after Dublin III and ten after 2015, is European refugee policy organized around protection, or around creating distance?